

1.

CASE #	CASE NAME	HEARING NAME
CVRI2500478	KARTEL MUSIC VS RM & ASSOCIATES ELITE TAX, LP	MOTION FOR LEAVE TO AMEND COMPLAINT ON 1ST AMENDED COMPLAINT

Tentative Ruling: Hearing continued to 9/9/26.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2505848	CITY OF JURUPA VALLEY VS SOTO	MOTION SET ASIDE DEFAULT BY JORGE SOTO
CVRI2505848	CITY OF JURUPA VALLEY VS SOTO	MOTION SET ASIDE DEFAULT BY SUSANA SOTO

Tentative Ruling: Defendants' Motion to Set Aside are denied.

As set forth in the Complaint for Preliminary Injunction to Abate a Public Nuisance, Unpaid Administrative Fines, and Declaratory Relief (Exhibit D to the Declaration of Arley T. Titzler in "Jurupa dec.pdf"), this action arises from the ongoing presence of public nuisance conditions at 6012 Etiwanda Avenue in the City of Jurupa Valley. These conditions include unpermitted pallets, commercial trucks and trailers, metal shipping containers, unpermitted structures, and accumulated rubbish and debris.

According to the Code Enforcement Case (Exhibits A, B, and C to the Declaration of Arley T. Titzler), the City has spent over four years attempting to obtain Defendants' voluntary compliance. This extensive history includes:

1. The issuance of numerous Notices of Violation and Administrative Citations beginning in August 2022 (Exhibits A, B, and C to the Declaration of Arley T. Titzler).
2. The recording of Notices of Pendency of Administrative Proceeding in November 2023 (Exhibit D).
3. A formal Administrative Hearing on May 5, 2025, which co-defendant Jorge Soto failed to attend despite receiving sufficient notice (Exhibit E).
4. A formal Administrative Hearing Decision and Order served on May 25, 2025, in which the Hearing Officer declared the Properties a public nuisance (Exhibit E).
5. A Cease and Desist Letter sent via Federal Express and delivered to Defendants' Olive Street residence on January 28, 2025 (Exhibit B).

Despite these exhaustive administrative efforts, Defendants failed to abate the public nuisance or comply with permitting requirements.

Following the filing of the Complaint on October 10, 2025, Plaintiff personally served Defendant Susana Soto with the Summons and Complaint on November 23, 2025 (Exhibit F). On December 15, 2025, Plaintiff effected substituted service on Jorge Soto

at the subject property (Exhibit G). Neither Defendant filed a responsive pleading within the statutory timeframe.

On April 20, 2026, Clerk of this Court entered defaults against both Susana Soto and Jorge Soto (Exhibits H and I). On June 4, 2026, Plaintiffs filed an application for default judgment (Declaration of Arley T. Titzler). In June 2026, Defendants retained counsel and moved to set aside the entries of default.
CCP §473.5

Under Code of Civil Procedure section 473.5, a court may set aside a default or default judgment if proper service of summons has not resulted in "actual notice" to a party in time to defend the action, provided the lack of notice was not caused by the party's avoidance of service or inexcusable neglect. Jorge Soto asserts that substituted service on December 15, 2025, did not provide him with actual notice of the lawsuit in time to defend. However, as established in *Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077-1078, the burden is on the defendant to show that their lack of actual notice was not caused by inexcusable neglect. The records demonstrate that Defendants had actual, ongoing knowledge of the City's active enforcement action against their property. Jorge Soto personally visited City Hall in October 2022 to discuss the violations, was repeatedly served with administrative citations, and his daughter and wife came to City Hall in March 2025 to discuss the cease-and-desist orders (Exhibit A, Code Enforcement actions dated 10/11/2022 and 03/07/2025). Given this extensive, multi-year history of personal contact regarding the exact public nuisance at issue, Defendants' failure to respond to a properly served summons constitutes inexcusable neglect.

CCP§ 473(b)

Under Code of Civil Procedure section 473(b), the court may relieve a party from a default taken against them through mistake, inadvertence, surprise, or excusable neglect. Defendant Susana Soto asserts that she misunderstood the legal effect of the summons or failed to appreciate the response deadline. However, as established in *Yarbrough v. Yarbrough* (1956) 144 Cal.App.2d 610, 615, a trial court lacks the power to set aside a default merely because a defendant did not realize the legal effect of failing to file an answer. *Gilio v. Campbell* (1952) 114 Cal.App.2d Supp. 853, 857-858, doing nothing after being served with a summons that plainly advises the party to appear is the conduct of a grossly negligent person, not a reasonably prudent person, and does not constitute excusable neglect. Here, Susana Soto was personally served on November 23, 2025, and the City waited nearly five months before entering default on April 20, 2026 (Declaration of Arley T. Titzler, paragraphs 10-13). Simply ignoring the summons for months does not constitute excusable neglect.

A court has inherent equitable power to set aside a default judgment on the ground of extrinsic fraud or mistake. However, a party seeking equitable relief must demonstrate: (a) a meritorious defense, (b) a satisfactory excuse for not presenting a defense, and (c) diligence in seeking to set aside the default. *Rappleyea v. Campbell* (1994) 8 Cal.4th 975. As analyzed above, Defendants have failed to show a satisfactory excuse. Also, equitable relief on the grounds of extrinsic fraud or mistake is unavailable when a party's

own negligence allowed the default to occur. *Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13. Defendants knew of the dispute and the pending enforcement action yet chose not to participate, forfeiting their right to equitable intervention.

Defendants argue that they acted with reasonable diligence because they retained counsel within two months of the entry of default. However, the time for diligence runs from the entry of default, not the default judgment. *Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273. Because Defendants had extensive notice of the lawsuit and delayed five months before default was even entered, their post-default speed cannot cure their pre-default inexcusable neglect.

Defendants rely heavily on the public policy favoring the resolution of cases on their merits. *Elston v. City of Turlock* (1985) 38 Cal.3d 227, 235. Where inexcusable neglect is clear, the policy favoring trial on the merits no longer prevails. The court cannot allow a party to use default rules as a tactical delay mechanism, especially in a public nuisance action.

Defendants argue that Plaintiffs will suffer no legal prejudice if the defaults are vacated because the ordinary necessity of litigating on the merits is not prejudice. This argument is unavailing. The City has demonstrated that it spent over four years pursuing administrative abatement, held multiple hearings, recorded notices, and expended significant public resources preparing a detailed complaint and default-judgment application (Declaration of Arley T. Titzler, paragraphs 4-16). Allowing Defendants to vacate their defaults without a satisfactory excuse would force the City to duplicate this work and would prolong the unabated public nuisance, directly harming public health and safety.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2500446	TODD VS VEVOR STORE, LLC	HEARING: PRESERVE EVIDENCE

Tentative Ruling: Appearances required.

The legislative intent behind CCP 128 is to ensure that trial courts possess the tools necessary to administer justice fairly, maintain courtroom decorum, prevent procedural abuse, and enforce their own rulings. Rather than granting sweeping new powers, the statute codifies the judiciary's inherent power under the Separation of Powers doctrine, ensuring courts do not rely entirely on specific procedural rules to maintain order and authority.

“The Discovery Act does not expressly prohibit the intentional destruction of relevant evidence (“spoliation”) before a lawsuit has been filed or before a discovery request.” (Weil & Brown, CPG: Civ. Proc. Before Trial (TRG 2026) § 8:19.5 citing *Dodge, Warren & Peters Ins. Svcs., Inc. v. Riley* (2003) 105 Cal.App.4th 1414, 1419.) But, as to electronically-stored information (ESI), a party has a prelitigation duty to preserve material evidence if litigation is “reasonably foreseeable.” (*Id.* § 8:19.7 citing *Victor*